

(3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civil Code, § 3294.)

A plaintiff must plead more than conclusory allegations to seek punitive damages. (*Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1042.) "In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff." (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.)

Plaintiff, as discussed above with respect to the demurrer, does not allege any particularly blameworthy act on the part of Maria Casillas. While a defendant must have intended to cause the touching involved in a battery, nothing in the complaint suggests that there was any intent to harm in Casillas' touching. Accordingly, an award for the "sake of example and by way of punishing the defendant" is not justified.

The motion to strike is granted as to items 1, 2, and 8. However, plaintiff states he can "go into more detail" (Opposition 5:14-16) so leave to amend is granted.

## **2.Eighth Cause of Action**

As discussed above, with respect to the demurrer, the Court does not agree with defendants that the scope of amendment precluded plaintiff's adjusting of the eighth cause of action. The motion is denied as to this item (Item No. 3).

## **3.Discussion of Legal Authorities**

As to the various citations to legal authority and plaintiff's narrative concerning the import of these authorities, the motion is denied. While there may be little need for such text, the Court does not necessarily view the text as improper, false, or irrelevant. As pointed out in the plaintiff's opposition, this is complaint against a public entity and therefore may require the pleading and proving of certain mandatory duties pursuant to statute. Accordingly, the motion is denied as to the quoted material (Items 4-7).

**7. 9:00 AM CASE NUMBER: C24-00451**  
**CASE NAME: JAXSON JULIAN VS. MARIA CASILLAS**  
**\*HEARING ON MOTION IN RE: STRIKE 3RD AMENDED COMPLAINT**  
**FILED BY: CASILLAS, MARIA**  
**\*TENTATIVE RULING:\***

Please see Line 6.

**8. 9:00 AM CASE NUMBER: C24-01376**  
**CASE NAME: XUE XIE VS. SHENG LIN**  
**\*HEARING ON MOTION FOR DISCOVERY COMPEL DEPOSITION OF SHENG PING LIN**  
**FILED BY: XIE, XUE FEN**  
**\*TENTATIVE RULING:\***

On January 28, 2026, Plaintiff Xue Fen Xie filed a Motion to Compel the Deposition of Defendant of Sheng Ping Lin. On July 9, 2026, Defendant Lin filed opposition noting that the deposition occurred on March 25, 2026. Plaintiff has not withdrawn the motion, but has also not filed any further request for sanctions. The Court finds the Motion is moot and declines to award sanctions.

**9. 9:00 AM CASE NUMBER: C25-02163**  
**CASE NAME: NICOLE THOMAS VS. PITTSBURG UNIFIED SCHOOL DISTRICT**  
**\*HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**  
**FILED BY: PITTSBURG UNIFIED SCHOOL DISTRICT**  
**\*TENTATIVE RULING:\***

Plaintiff Nicole Thomas filed her complaint on July 31, 2025 alleging wrongful termination against Defendant Pittsburg Unified School District (the District). On February 3, 2026, the District filed a Motion for Judgment on the Pleadings.<sup>1</sup> As of this date, Thomas has filed no opposition, although *before* this Motion was filed, on December 24, 2025, she submitted a “Reasons Not to Dismiss.” She also failed to appear at the case management conference on June 15, 2026, and an order to show cause issued.

#### **Meet and Confer**

The meet and confer requirement has been satisfied. (Jessica Adair Decl., ¶¶ 3-7; Code of Civ. Proc., § 439, subd. (a)(3)(A).) Defendant attempted to meet and confer and Plaintiff refused.

#### **Legal Standard for Motion for Judgment on the Pleadings**

Code of Civil Procedure section 438 permits a defendant to move for judgment on the pleadings on the ground that the complaint does not state facts sufficient to constitute a cause of action against the defendant. (Code Civ. Proc., §§ 438, subd. (b)(1), 438, subd. (c)(1)(B)(ii), and 438, subd. (c)(2)(A); *Stoops v. Abbassi* (2002) 100 Cal.App.4th 644, 650 [“Such motion may be made on the same ground as those supporting a general demurrer, i.e., that the pleading at issue fails to state facts sufficient to constitute a legally cognizable claim or defense. [Citation omitted.]”]; *See also Connerly v. Schwarzenegger* (2007) 146 Cal.App.4th 739, 746 [“ ‘A motion for judgment on the pleadings is the equivalent of a demurrer made after the pleadings are in.’ [Citation omitted.]”].) A motion for judgment on the pleadings may also be made to the complaint in its entirety. (Code Civ. Proc., § 438, subd. (c)(2)(A).)

The legal standards for determination of a motion for judgment on the pleadings are similar to the standards for determination of a demurrer. (*Eckler v. Neutrogena Corp.* (2015) 238 Cal.App.4th 433, 439.) The basis for judgment on the pleadings “shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc. § 438, subd.

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<sup>1</sup> At times in briefing, the District refers to its motion as a demurrer. The Court will treat the Motion as it is captioned.